Articles 14, 15, 19(1), 25-28, guaranteeing Indian citizens the rights to equality, non-discrimination, freedom of expression, and freedom of conscience/practice of religion. The last is especially a loaded one. What started in Udupi may finally reach everywhere from Usilampatti to Uttar Dinajpur. Commentators do not rule out the possibility of "an unmanageable deluge" of copycat court cases against practices in other religions: the scope for mischief, and a spillover effect across India's social and political domains, is not small.

Supreme Court advocate Sanjay Hegde, who represents the petitioners, feels the judgment is flawed even on the basic point of the February 5 G.O. "Question is, where is the power to prescribe a uniform? If it does not exist in the original Act, can you do it by a rule? Can a rule exceed the originally given power?" he asks. But once the court exceeded that remit, there was a sense of inevitability. "In the sociology of law, there is a lot of writing on how judicial reasoning is always contextual—the thinking of judges inevitably flows from a time and place. And that's true even of times that aren't so politically fraught," says Supreme Court lawyer Shahrukh Alam. From the bare-bones elements of a case, judges do tend to go on to reflect the deeper consensus in society.

Meanwhile, there is dismay among sections of Muslim civil society and commentariat. "The verdict is disappointing. It was not correct for the judges to interpret a religious matter. They should have called religious scholars to explain the issue," says Dr Zafarul-Islam Khan, former chairman, Delhi Minorities Commission, reflecting the sense of alienation in the community. The verdict risks giving "judicial sanction to bigotry", he says.

Not everyone agrees. Kerala Governor Arif Mohammed Khan, who famously broke with the orthodoxy on the Shah Bano case in the 1980s, welcomed the verdict unreservedly. "The question here is limited strictly to schools/ colleges. The critics are themselves widening its scope...as if the governments of India and Karnataka are denying women the right to choose their dress. They claimed Article 25 violation even on triple talaq," he told India Today TV. There are also plenty of in-betweens—those ambivalent about the hijab itself who nevertheless feel the ruling to be an infringement on an inviolable space of personal and community choice.

Away from those debates, the verdict can put the education of innumerable Muslim girls in peril. Says writer-historian Rana Safvi: "There are different conversations going on here. The law, constitutional rights, patriarchy, all that. But I'm concerned about the girls themselves. I've seen many first-generation learners, in UP and Delhi, whose families allow them to go to school only because of the hijab. Whether you like it or not, it's the reality...and it will have an effect on real lives. In the process, their right to education is harmed."

Many share a disquiet about the primacy laid on the idea of 'uniforms' and 'discipline'. "You can read it in classic Foucauldian terms: forming an idea of what constitutes the model citizen, as one who's disciplined, homogenous, blends in, and asks no questions. That a constitutional court has put its stamp on that is, to me, deeply problematic," says Alam. This is also the turf on which talk can move towards a uniform civil code—as was seen in proclamations by BJP politicians in February.

There's also a realistic plane here. Some believe the ruling establishment may not, in actual practice, wish to go down that track and open a can of worms—while keeping the debate alive. India presents an infinitely complex social landscape, hosting everyone from Muslim women in full burqa, to kirpan-wielding Sikhs, to Digambari ('sky-clad') Jain monks and Naga sadhus without a stitch on. An aggregate of exceptions. How does one begin to legislate uniformity upon it? Is it even desirable? These are perennial questions.

Whether the hijab case really traverses the distance from its humble origins to touch such universal realms will also depend on some technical aspects of the law. Specifically, what petitions come before the Supreme Court, whether they are Special Leave Petitions (SLPs) or Public Interest Litigations (PILs), and who actually files them. The first one off the block was Niba Naaz, an Udupi college girl who was not among the original petitioners. She filed an SLP on the grounds that the verdict affected her directly, as she fell within its territorial jurisdiction. (An SLP can otherwise only be filed by an original petitioner.)

Some others are PILs—even the All India Muslim Personal Law Board is contemplating one. What a PIL will do is 'generalise' the ambit of the verdict. By being treated on its abstract aspects ('essential practice') rather than concrete ones ('was the Udupi college right?'), what was *not* applicable elsewhere makes an ingress to a universal context. The legal fraternity feels the Supreme Court may not rush into that. It has deferred a listing of the case—telltale signs for more than one observer that, if it chooses, it can let the matter linger while fulfilling the usual protocol. Sometimes democracy and law can seem to be in conflict: too much proscriptive law can mean diminished freedoms. If the apex court does let things linger, that may be procrastinating in a purposeful manner. ■

COVERED, UNCOVERED

DEC. '21-JAN. '22
Six hijab-clad Muslim girls at Udupi's PU College stage protests after being barred from class. Hindu students stage counter-protests

JAN. 31
The protesting Muslim girls approach the HC

FEB.5
State issues G.O. under 133(2) of 1983 Edu Act, giving colleges the right to impose uniforms. Protests spread

FEB. 10
HC says interim order freezes all religious symbols on campuses. Hijab-clad girls get debarred across state

MAR. 15
HC upholds hijab ban, says not essential to faith. Challenged in SC